

Special Notice

SUBJECT* MetaSys System Service -Intent to Sole Source

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	53214-1476
SOLICITATION NUMBER*	36C25225Q0050
RESPONSE DATE/TIME/ZONE	10-28-2024 9:00AM CENTRAL TIME, CHICAGO, USA
ARCHIVE	99 DAYS AFTER THE RESPONSE DATE
RECOVERY ACT FUNDS	N
PRODUCT SERVICE CODE*	7B22
NAICS CODE*	541519
CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs GLAC (69D) 115 South 84th Street, Suite 101 Milwaukee WI 53214-1476

POINT OF CONTACT*

ADDITIONAL INFORMATION

AGENCY'S URL

URL DESCRIPTION

AGENCY CONTACT'S EMAIL ADDRESS

EMAIL DESCRIPTION

***= Required Field**

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DESCRIPTION

Under Statutory Authority 41 U.S.C. 1901, the Great Lakes Acquisition Center (GLAC) intends to negotiate a sole source contract with Johnson Controls, Inc., for Metasys System support and service for the building automation system server located at the Tomah VA Medical Center (VAMC), Wisconsin. The building automation software utilized on the system is proprietary to Johnson Controls Inc., and the software key components communicate between all existing installed HVAC controllers and panels at the VAMC. This procurement is being conducted in accordance with FAR 12 & 13 Single Source Award Justification for Simplified Acquisitions Procedure and no other vendor will satisfy agency requirements.

This acquisition is conducted under the authority of 41 U.S.C. 1901 Simplified acquisition procedures as implemented in FAR 13.106-3(b)(3)(i), only one responsible source and no other supplies or services will satisfy agency requirements. This will be a firm fixed price contract for one 12-month base year contract and four option renewal periods to be exercised at the discretion of the government. The NAICS Code is 541519.

This notice of intent is not a request for competitive quotes. No solicitation documents are available and telephone requests will not be accepted. However, any firm that believes it can meet these requirements may give written notification to the Contracting Officer by **9:00 AM (local time) October 28, 2024**. Supporting evidence must be furnished in **sufficient detail** to demonstrate the ability to comply with the above requirements. Responses received will be evaluated; however, a determination by the Government not to compete the proposed procurement based upon responses to this notice is solely within the discretion of the Government. If no responses are received, the Contracting Office will proceed with the sole source negotiation with Johnson Controls, Inc.

Information must be sent to the Contracting Officer, **Lori.Eastmead@va.gov**. TELEPHONE INQUIRIES WILL NOT BE ACCEPTED.

METESYS SERVER & SYSTEM MAINTENANCE STATEMENT OF WORK

Provide all necessary labor, materials, parts, equipment, travel, 24-hour telephone and remote service, support and required field service for the JCI Metasys® BAS (Building Automation System) server located at the Tomah VA Medical Center.

1. SCOPE

- A. Contractor shall provide all necessary labor, materials, parts, equipment, travel, 24-hour telephone and remote service, support and required field service for the JCI Metasys® BAS (Building Automation System) server and related systems (Refer to Line Item 1, B, 1) through 6), below for related systems).
 - 1) All associated controllers can be accessed and updated either remotely or from B40, on the Tomah VA Medical Center facility.
 - 2) Remote access shall be through a Contractor provided, VA approved, browser-based web portal that shall feature screen sharing, video, and audio conference calling at a minimum and shall be compatible with at least one or all the following web browsers.
 - a) Microsoft Internet Explorer.
 - b) Microsoft Edge.
 - c) Google Chrome.

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- B.** When HVAC system devices fail and require replacement by the Tomah VAMC HVAC Technicians, the Contractor shall land/terminate existing data cables, program, calibrate and commission newly installed system devices and hardware and provide the Tomah VA COR with a commissioning report for each device for which service was performed. These devices and hardware are as follows.
- 1) Actuators.
 - 2) Sensors.
 - 3) Valves.
 - 4) Switches.
 - 5) Relays.
 - 6) Control modules for all NAE's (Network Automated Engine), NIE's (Network Integration Engine) and ADS/ADX's (Application & Data Server(s)/Extended Application and Data Server(s)).
 - 7) All work in Line Item 1, B above shall not exceed 200 manhours per year. Any additional needed manhours shall be approved first by the contract COR and shall have an additional Purchase Order initiated with a purchase card if required.
- C.** Contractor shall be available to provide telephone or remote support, 24 hours a day, 7 days a week, 365 days per year.
- D.** Contractor shall contact the Customer and return calls as follows.
- 1) Until contact with Customer occurs.
 - 2) During normal business hours, as defined in Line Item 2, Paragraph A & C below, the Contractor shall contact Customer and return calls Within 15 minutes of Customer contact.
 - 3) During other than normal business hours and Federal Holidays, as defined in Line Item 2, Paragraph(s) A & C below, for issues reported as an emergency, the Contractor shall contact the Customer within (2) two hours.
 - 4) During other than normal business hours and Federal Holidays, as defined in Line Item 2, Paragraph(s) A & C below, for issues reported as urgent, the Contractor shall contact the Customer within (4) four hours.
 - 5) During other than normal business hours and Federal Holidays, as defined in Line Item 2, Paragraph(s) A & C below, for issues reported as minor system malfunctions, the Contractor shall contact the Customer within (6) six hours.
- E.** Contract to include software upgrades to all Metasys® Server(s)/Client(s), NAE's (Network Automated Engine), NIE's (Network Integration Engine) and ADS/ADX's (Application & Data Server(s)/Extended Application and Data Server(s)).
- F.** Contractor shall provide functional training on newly upgraded server/software features to all Tomah VA Medical Center HVAC Technicians for each JCI Metasys® BAS server software upgrade.
- G.** Any changes to this SOW shall be authorized and approved only through written modification of this contract from the CO (Contracting Officer) in coordination with the COR (Contracting Officers Representative). Costs incurred by the contractor through the actions of parties other than the Contracting Officer shall be borne by the contractor.
- H.** Notwithstanding, the Contractor shall perform no additional work without the prior written authorization of the Contracting Officer. Any additional work, which may be performed by the Contractor without this approval, will be performed by the Contractor at no additional cost to the Government.
Within fourteen (14) days of the award of this contract, the Contractor and the Government shall agree upon a date for work to take place.

2. SERVICE HOURS AND FEDERAL HOLIDAYS

- A.** Normal hours of coverage are Monday through Friday from 7:30 am to 4:30 pm, local time excluding holidays. All work shall be performed during normal hours of coverage unless otherwise requested or approved by the COR or their designee.
- B.** All contract work shall be on a date and time mutually agreed upon between the Contractor and the COR.
- C.** Federal Holidays observed by the VAMC are:

New Years' Day
Columbus Day

Independence Day
Labor Day

Christmas Day
Martin Luther King Day

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Memorial Day
Juneteenth

Presidents' Day
Thanksgiving Day

Veterans' Day

3. GOVERNMENT FURNISHED EQUIPMENT

- A. All devices as indicated in Line Item 3, B.
- B. All data and power wiring, conduit and associated assemblies that are related to devices and hardware indicated in Line Item 3, B.

4. GENERAL INFORMATION

- A. Compliance with General Safety Regulations:
 - 1) All Contractors and Subcontractors performing services for the Government shall comply with all Occupational Safety and Health Administration (OSHA), State, County and Municipal Safety and Occupational Health Standards and any other applicable rules and regulations. All Contractors and Subcontractors shall be held responsible for the safety of their employees and any unsafe acts or conditions that may cause injury or damage to any persons or property within and around the work site area under this contract.
 - 2) All ladders, scaffolding, tools, equipment, personal protective equipment, etc. shall be OSHA approved for the work to be performed.
 - 3) The contractor's FST (Field Service Technician) shall contact the COR/POC prior to performing service at this location and shall communicate to the COR of their presence on the Tomah VA Medical Center campus.
 - 4) Contractor is responsible to replace any items damaged by the contractor, sub-contractor, their employees, or equipment at no extra charge to the Government.
 - 5) Contractor shall not interrupt any utility service while performing under this contract.
 - 6) Contractor personnel must conduct their work in a manner that does not interfere with the normal functions of the facility and will stop work if asked by the CO/COR as required if interruptions do occur.
 - 7) The Contractor is responsible for supplying, completing, and submitting all reports required or requested by any additional Federal, State, or local codes as they pertain to any work performed under this contract.
 - 8) No hot electrical work shall be performed. Any electrical work that requires any interruption in electricity must be coordinated with the COR and the facility electricians. All OSHA and Facility lockout/tagout procedures shall be followed.

5. CONTRACTING OFFICER'S REPRESENTATIVE (COR)

- A. Scheduling of work shall be arranged with at least one, or all the Point of Contacts below and in the following order: contract COR (Contracting Officers Representative) or contract ACOR (Alternate Contracting Officers Representative).
 - 1) See Table 1 below for Point of Contact information.

Table 1:

NAME	POSITION	PHONE	EMAIL
	COR/Boiler Plant Supervisor		
	ACOR/Maintenance Supervisor		

6. COMPETENCIES AND QUALIFICATIONS OF PERSONNEL SERVICING EQUIPMENT:

- A. Each respondent must have an established business, with an office and staff; The staff includes a Field Service Engineer (FSE) and a second Field Service Engineer who will serve as the backup.

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B. FSE shall have a minimum of two (2) years of experience performing this service. The FSE(s) shall have completed a formalized training program for the equipment identified in the Statement of Work. For field experience, the FSE(s) shall have a minimum of two years of experience, with respect to the services performed under this contract.

C. The FSEs shall be authorized by the Contractor to perform the maintenance services. The Contractor shall provide written assurance of the competency of their personnel and a list of credentials of approved FSEs for all devices the Contractor services at the VAMC. The CO may authenticate the training requirements, request training certificates or credentials from the Contractor at any time for any personnel who are servicing or installing any VAMC equipment. The CO and/or COR specifically reserves the right to reject any of the Contractor's personnel and refuse them permission to work on the VAMC equipment.

D. If subcontractor(s) are used, they must be approved by the CO; the Contractor shall submit any proposed change in Subcontractor(s) to the CO for approval/disapproval. The contractor shall be fully staffed on the first day of work under the contract. All personnel shall receive close and continuing first-line supervision by the contractor. Individuals who are performing the work must be experienced, fully trained and a regular employee of the contractor.

E. Contractor's personnel shall be regular employees of the Contractor, day laborers are not acceptable.

7. ORIENTATION FOR CONTRACTOR EMPLOYEES:

A. Contractor will attend an orientation meeting as arranged by the Contracting Officer's Representative (COR). The VA will schedule this meeting and it will include discussion of the following topics: (VA will provide information to the contractor regarding these topics and will document the meeting)

- Fire and Safety
- Infection control
- Disaster procedures - Other

B. The Contractor will be responsible to ensure that Contractor employees coming to the work site will receive the information required above.

8. CONTRACT DELIVERABLES

Contractor shall provide, to the COR after completion of work, at the minimum, the following deliverables:

- A.** A copy of the FSR (Field Service Report(s)), in digital format and sent to the contract COR, ACOR and the Contracting Officer.
- B.** All training manuals and/or software instruction manuals as they apply in both hardcopy and digital format.

9. SECURITY REQUIREMENTS

- A.** All Contractor FST's (Field Service Technician(s)) shall obtain contractor ID badges from the COR. Identification shall be worn visible always by the Contractor and all FST's while on premises. Contractor shall coordinate with COR to acquire said identification badges.
- B.** During normal working hours of operation, Monday through Friday, the contractor shall check in with the COR/Tomah VAMC (Veterans Affairs Medical Center) POC (Point of Contact) when arriving to perform work and check out with the COR/Tomah VAMC POC when work/workday is complete.
- C.** During other than normal hours of operation, the contractor shall sign in and out with the Fire Department located on the east end of B36.
- D.** It is the responsibility of the Contractor to park in the appropriate designated parking areas. Information on parking is available from the VA Police Section. The VAMC will not invalidate or make reimbursement for parking violations of the Contractor under any conditions.
- E.** Effective January 1, 2019, smoking is prohibited both inside and outside (entire campus) at the VAMC.

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- F. Possession of weapons is prohibited. Enclosed containers, including tool kits, shall be subject to search. Violations of VA regulations may result in citation answerable in the United States (Federal) District Court, not a local district, state, or municipal court.

10. RISK CONTROL

- A. The Contractor shall take all necessary precautions to protect government property and shall repair any damage caused by their efforts.
- B. All work affecting patients shall be coordinated in advance by the Government and the Contractor to have minimal impact on the patients.

11. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

- A. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
- B. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
- C. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
- D. The Tomah VAMC and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of VA Tomah or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to VA Tomah. The agency must report promptly to NARA in accordance with 36 CFR 1230.
- E. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records, or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the [contract vehicle]. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to VA Tomah control, or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand-carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the contract. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (E).
- F. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and VA Tomah guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.
- G. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with VA policy.

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- H. The Contractor shall not create or maintain any records containing any non-public VA Tomah information that are not specifically tied to or authorized by the contract.
- I. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
- J. The Tomah VAMC owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which the Tomah VAMC shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
- K. Training.
 - 1) All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take The Tomah VAMC-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.
 - 2) To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.
- L. Flow down of requirements to Sub-contractors.
 - 1) The Contractor shall incorporate the substance of this clause, its terms, and requirements including this paragraph, in all subcontracts under this [contract vehicle], and require written subcontractor acknowledgment of same.
 - 2) Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

12. PLACE OF PERFORMANCE

Tomah VA Medical Center, B415, 500 E. Veterans St., Tomah, WI. 54660

13. Period of Performance.

- A. Support and service, as defined in this SOW, is to occur as scheduled and as required during the period of performance.